

Table of Statutes referred to in this Act.

Short Title	Session and Chapter
Education Act, 1944	7 & 8 Geo. 6. c. 31.
Education Act, 1946	9 & 10 Geo. 6. c. 50.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
Education (Miscellaneous Provisions) Act, 1953 ...	1 & 2 Eliz. 2. c. 33.
Local Government Act, 1958	6 & 7 Eliz. 2. c. 55.
Local Government Miscellaneous Financial Provisions (Scotland) Act, 1958	6 & 7 Eliz. 2. c. 64.

CHAPTER 13

Vehicles (Excise) Act, 1962

ARRANGEMENT OF SECTIONS

Excise duty on, and licensing of, mechanically propelled vehicles

Section

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SCHEDULES:

First Schedule—Annual rates of duty on certain vehicles not exceeding 8 cwt. in weight unladen.

Second Schedule—Annual rates of duty on hackney carriages.

Third Schedule—Annual rates of duty on tractors, etc.

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Fifth Schedule—Annual rates of duty on vehicles not falling within the first four Schedules to this Act.

Sixth Schedule—Provisions as to the computation of the unladen weight of vehicles.

Seventh Schedule—Consequential amendments of Acts.

Eighth Schedule—Repeals and Revocations.

Ninth Schedule—Savings and transitional provisions.

An Act to consolidate certain enactments relating to excise duties on mechanically propelled vehicles, and to the licensing and registration of such vehicles.

[29th March, 1962]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Excise duty on, and licensing of, mechanically propelled vehicles

1.—(1) Subject to the provisions of this Act, a duty of excise Charge of shall be charged in respect of every mechanically propelled duty. vehicle used on any public road in Great Britain and shall be paid upon a licence to be taken out by the person keeping the vehicle.

(2) The duty chargeable under this section in respect of a vehicle of any description shall be chargeable by reference to the annual rate applicable in accordance with the provisions of that one of the first five Schedules to this Act which relates to vehicles of that description.

2.—(1) Subject to the provisions of the following section, a Duration of licence under this Act (other than a trade licence) may be taken licences and out— rates of duty

(a) in the case of any vehicle, for one calendar year ;

(b) in the case of any vehicle, for any period of twelve months running from the beginning of the month in which the licence first has effect ;

(c) in the case of any vehicle the annual rate of duty applicable to which exceeds four pounds, for any period of four months running from the beginning of the month in which the licence first has effect ;

(d) in the case of a goods vehicle which is authorised to be used on roads by virtue of an order made under subsection (4) of section sixty-four of the Road Traffic Act, 1960, and the unladen weight of which exceeds eleven tons, for any period of seven consecutive days.

(2) Subject to the provisions of the following section, the duty payable on a licence under this Act for a vehicle of any description shall—

(a) if the licence is taken out for one calendar year or any other period of twelve months, be paid at the annual rate of duty applicable to vehicles of that description ;

(b) if the licence is taken out for a period of four months, be paid at a rate equal to eleven thirtieths of the said annual rate ;

(c) if the licence is taken out for a period of seven days, be paid at a rate equal to one fifty-second of the said annual rate plus ten per cent. of that amount ;

and in computing the rate of duty in accordance with paragraph (b) or paragraph (c) of this subsection, any fraction of a shilling shall be treated as a whole shilling if it exceeds sixpence and shall otherwise be disregarded.

Power to
modify
duration of
licences and
rates of duty.

3.—(1) Subject to the following provisions of this section, the Minister may by order provide that licences under this Act (other than trade licences and licences for one calendar year) may be taken out for such periods as may be specified in the order, being—

(a) periods of a fixed number of months (not exceeding fifteen) running from the beginning of the month in which the licence first has effect ; or

(b) in the case of vehicles of such description, or of such description and used in such circumstances, as may be so specified, periods of less than a month.

(2) A licence for any period specified in an order under this section shall be taken out on payment of duty at such rate as may be so specified :

Provided that—

(a) the rate of duty on any licence taken out for a vehicle for a period other than one of twelve months shall be such as to bear to the annual rate of duty applicable to that vehicle no less proportion than the period for which the licence is taken out bears to a year ; and

- (b) the rate of duty on any licence taken out for a vehicle for a period of three months or for a period of four months shall not exceed for each month of the period ten per cent. of the annual rate of duty applicable to the vehicle.

(3) Any order made by the Minister under this section may be made so as to apply only to vehicles of specified descriptions and may make different provision for vehicles of different descriptions or for different circumstances.

(4) The power to make orders under this section shall be exercisable by statutory instrument, and shall include power to vary or revoke any order so made and to amend or repeal the following provisions of the foregoing section, that is to say, in subsection (1), paragraphs (b), (c) and (d) and, in subsection (2), paragraphs (b) and (c) and so much of the remainder of the subsection as relates to those two paragraphs.

4.—(1) The duty chargeable under section one of this Act in respect of the use of mechanically propelled vehicles on public roads in Great Britain shall also be chargeable in respect of the keeping of such vehicles thereon, and the foregoing provisions of this Act shall apply accordingly.

Duty on vehicles kept, but not used, on roads.

(2) For the purposes of the said duty, in so far as chargeable by virtue of this section, a vehicle shall be deemed—

(a) to be chargeable with the like duty as on the occasion of the issue of the licence or last licence issued for the vehicle under this Act, and to be so chargeable by reference to the rate specified in the same Schedule to this Act as on that occasion, or

(b) if no licence has been issued for the vehicle under this Act, to be chargeable by reference to the rate applicable to it under the Fifth Schedule to this Act.

(3) Nothing in this section shall operate so as to render lawful the keeping of a vehicle for any period, in any manner or at any place, if to do so would be unlawful apart from this section.

5.—(1) The duty chargeable under this Act shall be levied by county councils in accordance with provisions to be made for the purpose by Order in Council.

Collection of duty.

(2) Subject to the provisions of this Act and of any Order in Council made under this section, every county council and their officers shall have within their county for the purpose of levying the duty aforesaid the same powers, duties and liabilities as the Commissioners of Customs and Excise and their officers have with respect to duties of excise and to the issue and cancellation of licences on which duties of excise are imposed and to other matters under the Acts relating to duties of excise and excise licences; and, subject to those provisions and in particular

section nineteen of this Act, all enactments relating to those duties and to punishments and penalties in connection therewith shall apply accordingly.

(3) Without prejudice to the foregoing subsection and subject to the provisions of any Order in Council made under this section, every county council shall, with respect to the duty of excise chargeable under this Act and the excise licences provided for thereby, have the powers given to the said Commissioners by the Acts relating to duties of excise and excise licences for the restoration of any forfeiture and the mitigation or remission of any penalty or part thereof.

(4) The duty levied by a county council under this Act shall be paid into the Exchequer in such manner and in accordance with such directions as may be contained in any Order in Council made under this section.

(5) Provision may be made by Order in Council under this section for enabling the Minister to give such directions to county councils as he thinks necessary for securing uniformity of administration and otherwise for carrying the provisions of this Act and of any such Order into effect, and it shall be the duty of county councils to comply with any directions so given.

(6) Any Order in Council made under this section may be varied or revoked by a subsequent Order so made.

**Exemptions
from duty.**

6.—(1) No duty shall be chargeable under this Act in respect of mechanically propelled vehicles of any of the following descriptions, that is to say—

- (a) fire engines ;
- (b) vehicles kept by a local authority while they are used or kept on a road for the purposes of their fire brigade service ;
- (c) ambulances ;
- (d) road rollers ;
- (e) vehicles used on tram lines, not being tramcars used for the conveyance of passengers ;
- (f) vehicles used or kept on a road for no purpose other than the haulage of lifeboats and the conveyance of the necessary gear of the lifeboats which are being hauled ;
- (g) vehicles (including cycles with an attachment for propelling them by mechanical power) which do not exceed six hundredweight in weight unladen and are adapted, and used or kept on a road, for invalids ;
- (h) road construction vehicles used or kept on a road solely for the conveyance of built-in road construction machinery (with or without articles or material used for the purposes of that machinery) ;

- (i) vehicles constructed or adapted, and used, solely for the conveyance of machinery for spreading material on roads to deal with frost, ice or snow or for the conveyance of such machinery and articles and material used for the purposes of the machinery.

(2) A mechanically propelled vehicle shall not be chargeable with any duty under this Act by reason of its use for clearing snow from public roads by means of a snow plough or similar contrivance, whether forming part of the vehicle or not, or by reason of its being kept for such use or by reason of its use for the purpose of going to or from the place where it is to be used for clearing snow from public roads by those means.

(3) Regulations under this Act may provide that, in such cases and subject to such conditions as may be prescribed, a mechanically propelled vehicle shall not be chargeable with any duty under this Act by reason of any use made of it for the purpose of a public or local authority's functions in connection with civil defence as defined in the Civil Defence Act, 1948, or by reason of its being kept on a road for any such use, or both.

(4) Regulations under this Act may provide for the total or partial exemption for a limited period from the duty chargeable under this Act of any mechanically propelled vehicles for the time being licensed under section one or section ten of the Vehicles (Excise) Act (Northern Ireland), 1954; and regulations made under this subsection may—

- (a) make different provision in relation to vehicles of different descriptions;
- (b) provide that any exemption conferred by the regulations in respect of any vehicle shall have effect subject to such conditions as may be prescribed.

(5) A mechanically propelled vehicle shall not be chargeable with any duty under this Act by reason of its use on public roads—

- (a) for the purpose of submitting it by previous arrangement for, or bringing it away from, a compulsory test; or
- (b) in the course of a compulsory test, for the purpose of taking it to, or bringing it away from, any place where a part of the test is to be or, as the case may be, has been carried out, or of carrying out any part of the test, the person so using it being either—

- (i) a person authorised as an examiner or appointed as an inspector under section sixty-five of

the Road Traffic Act, 1960, or acting on behalf of a person so authorised, or

(ii) a person acting under the personal direction of such a person as aforesaid ; or

- (c) where a test certificate is refused on a compulsory test, for the purpose of delivering it by previous arrangement at, or bringing it away from, a place where work is to be or has been done on it to remedy for a further compulsory test the defects on the ground of which the test certificate was refused.

In this subsection "test certificate" has the same meaning as in the said Act of 1960, and "compulsory test" means an examination under section sixty-five of that Act with a view to obtaining a test certificate without which a licence cannot be granted for the vehicle under this Act.

(6) If an applicant for a licence under this Act for any mechanically propelled vehicle satisfies the county council that the vehicle is intended to be used on public roads—

(a) only in passing from land in his occupation to other land in his occupation, and

(b) for distances not exceeding in the aggregate six miles in any calendar week,

then, if authorised so to do by the Minister with the consent of the Treasury, the council may exempt the vehicle from the duty chargeable under this Act in respect of the use of the vehicle on roads.

(7) If a vehicle exempted under the foregoing subsection from the payment of duty is used on public roads otherwise than for the purpose or to the extent specified in that subsection, the vehicle shall cease to be so exempted.

(8) In this section—

"road construction vehicle" means a vehicle constructed or adapted for use for the conveyance of built-in road construction machinery and not constructed or adapted for the conveyance of any other load except articles and material used for the purposes of that machinery ;

"road construction machinery" means a machine or contrivance suitable for use for the construction or repair of roads and used for no purpose other than the construction or repair of roads at the public expense ;

"built-in road construction machinery", in relation to a vehicle, means road construction machinery built in as part of the vehicle or permanently attached thereto.

7. If any person uses or keeps on a public road any mechanically propelled vehicle for which a licence under this Act is not in force, not being a vehicle exempted from duty under this Act by virtue of any enactment (including any provision of this Act), he shall be liable to the greater of the following penalties, namely—

- (a) an excise penalty of twenty pounds ; or
- (b) an excise penalty equal to three times the amount of the duty chargeable in respect of the vehicle.

8.—(1) Every person applying for a licence under this Act shall make such a declaration and furnish such particulars with respect to the mechanically propelled vehicle for which the licence is to be taken out or otherwise as may be prescribed.

Using and
keeping
vehicles
without a
licence.

Issue and
exhibition
of licences.

(2) Subject to the provisions of this Act relating to trade licences—

- (a) every licence issued under this Act shall be issued for the vehicle specified in the application for the licence and shall not entitle the person to whom it is issued to use or keep any other vehicle ; and
- (b) a county council shall not be required to issue any licence for which application is made unless they are satisfied—
 - (i) that the licence applied for is the appropriate licence for the vehicle specified in the application ; and
 - (ii) in the case of an application for a licence for a vehicle purporting to be the first application for a licence for the vehicle, that a licence has not previously been issued for that vehicle.

(3) Subject to the provisions of regulations under this Act, every licence issued under this Act for a mechanically propelled vehicle shall be fixed to and exhibited on the vehicle in the prescribed manner.

(4) Regulations under this Act may provide for the issue of new licences in the place of licences which may be lost or destroyed, and for the fee (not exceeding five shillings) to be paid on the issue of a new licence.

(5) Any licence issued under this Act for a mechanically propelled vehicle may be transferred in the prescribed manner.

**Surrender
of licences.**

9.—(1) The holder of a licence issued under this Act (other than a limited trade licence or a licence for a tramcar) may at any time surrender the licence to the county council with which the vehicle for which the licence was taken out is for the time being registered under this Act or, in the case of a general trade licence, to the county council by which the licence was issued.

(2) Where a licence is surrendered to a county council under the foregoing subsection, the holder thereof shall be entitled to be repaid by the council by way of rebate of the duty paid for the licence the following amount in respect of each complete month of the period of the currency of the licence which is unexpired at the date of the surrender, that is to say—

(a) in the case of a general trade licence taken out for a period of three months only, an amount equal to one third of the duty charged on that licence ;

(b) in the case of a licence of any other class, an amount equal to one twelfth of the annual rate of duty chargeable on the licence.

(3) In making repayments under this section fractions of a penny shall be disregarded.

**Alteration of
vehicle or
of its use.**

10.—(1) Subject to the provisions of this section, where a licence has been taken out for a mechanically propelled vehicle at any rate under this Act and the vehicle is at any time while the licence is in force used in an altered condition or in a manner or for a purpose which brings it within, or which if it was used solely in that condition or in that manner or for that purpose would bring it within, a class or description of vehicle to which a higher rate of duty is applicable under this Act, duty at that higher rate shall become chargeable in respect of the licence for the vehicle.

(2) Where duty at a higher rate becomes chargeable under the foregoing subsection in respect of any licence, the licence may be exchanged for a new licence, for the period beginning with the date on which the higher rate of duty becomes chargeable and expiring at the end of the period for which the original licence was issued, on payment of the appropriate proportion of the difference between—

(a) the amount payable under this Act on the original licence ; and

(b) the amount payable under this Act on a licence taken out for the period for which the original licence was issued but at the higher rate of duty, that amount being calculated, if that rate has been changed since the issue of the original licence, as if that rate had been in force at all material times at the level at which it is in force when it becomes chargeable.

(3) For the purposes of the foregoing subsection the appropriate proportion is the proportion which the number of months in the period beginning when the higher rate of duty becomes chargeable and ending with the end of the period for which the original licence was issued bears to the number of months in the whole of the last-mentioned period, any incomplete month being treated as a whole month.

(4) Where a licence has been taken out for a mechanically propelled vehicle, and by reason of the vehicle being used as mentioned in subsection (1) of this section a higher rate of duty becomes chargeable and duty at the higher rate was not paid before the vehicle was so used, the person so using the vehicle shall be liable to the greater of the following penalties, namely—

- (a) an excise penalty of twenty pounds ; or
- (b) an excise penalty of an amount equal to three times the difference between the duty actually paid on the licence and the amount of duty at that higher rate.

(5) Where a licence has been taken out for a mechanically propelled vehicle of a certain class or description, duty at a higher rate applicable to mechanically propelled vehicles of some other class or description shall not become chargeable in respect of the vehicle by reason of the vehicle being used as mentioned in subsection (1) of this section, unless the vehicle as used while the said licence is in force satisfies all the conditions which must be satisfied in order to bring the vehicle for the purposes of the charge of duty under this Act into the said other class or description of vehicles.

(6) Where duty has been paid in respect of a vehicle at a rate applicable under the Fourth Schedule to this Act, then, so long as the vehicle is to a substantial extent being used for the conveyance of goods or burden belonging to a particular person (whether the person keeping the vehicle or not), duty at a higher rate shall not become chargeable in respect of the vehicle by reason only that it is used for the conveyance without charge in the course of their employment of employees of the person aforesaid.

(7) Where duty has been paid in respect of a vehicle at a rate applicable to farmers' goods vehicles under the Fourth Schedule to this Act, duty at a higher rate shall not become chargeable in respect of the vehicle by reason only that, on an occasion when the vehicle is being used by the person in whose name it is registered under this Act for the purpose of the conveyance of the produce of, or of articles required for the purposes of, the agricultural land which he occupies, it is also used for the conveyance for some other person engaged in agriculture of the produce of, or of articles required for the

purposes of, the agricultural land occupied by that other person, if it is shown—

- (a) that the vehicle is so used only occasionally ;
- (b) that the goods conveyed for that other person represent only a small proportion of the total amount of goods which the vehicle is conveying on that occasion ; and
- (c) that no payment or reward of any kind is, or is agreed to be, made or given for the conveyance of the goods of that other person.

(8) Where duty has been paid in respect of a vehicle at a rate applicable to farmers' goods vehicles under the Fourth Schedule to this Act, duty at a higher rate shall not become chargeable in respect of the vehicle by reason only that, during such periods and in such areas as may be specified by order of the Treasury made by statutory instrument, it is used, whether or not by the person in whose name it is registered under this Act, for any such purpose as is specified in the order.

An order under this subsection may be revoked or varied by a subsequent order of the Treasury.

(9) The foregoing subsection shall continue in force until such date as Her Majesty may by Order in Council determine.

**Recovery of
under-
payments
and over-
payments
of duty.**

11.—(1) Where the amount of the duty which has been paid on a licence for a mechanically propelled vehicle is less than the amount payable on the licence appropriate to that vehicle—

- (a) the amount of the deficiency shall be a debt due to the county council with which the vehicle is for the time being registered under this Act ; and
- (b) that council may take proceedings for the recovery of that amount at any time before the expiration of the twelve months beginning with the end of the period in respect of which the licence was taken out.

(2) No proceedings shall be brought for enforcing any repayment of duty to which a person may be entitled in respect of any over-payment of duty made on a licence taken out by him for a mechanically propelled vehicle, unless the proceedings are brought before the expiration of the twelve months beginning with the end of the period in respect of which the licence was taken out.

**Trade
licences.**

12.—(1) If a motor trader applies in the prescribed manner to the council of the county in which his business premises are situated to take out a licence under this section for all mechanically propelled vehicles used by him (in this Act referred to as a " trade licence "), instead of taking out a licence for each

mechanically propelled vehicle kept by him, the county council may, subject to the prescribed conditions, issue to him a trade licence on payment of duty at the rate applicable to the licence in accordance with the following provisions of this section:

Provided that the holder of a trade licence shall not be entitled by virtue of that licence—

- (a) to use more than one vehicle at any one time, except in the case of a vehicle drawing a trailer and used for the prescribed purpose; or
- (b) to use any vehicle for any purpose other than such purposes as may be prescribed; or
- (c) to keep any vehicle on a road if it is not being used thereon.

(2) Two sets of regulations shall be made under this section prescribing the conditions subject to which trade licences are to be issued, and prescribing the purposes for which the holder of a trade licence may use it; and—

- (a) a licence to which the one set of regulations applies is hereafter in this Act referred to as a “general trade licence”; and
- (b) a licence to which the other set of regulations applies is hereafter in this Act referred to as a “limited trade licence”;

and it shall be at the option of every motor trader wishing to take out a trade licence whether the licence shall be a general trade licence or a limited trade licence.

(3) The purposes which may be prescribed as those for which the holder of a trade licence may use it shall not include the collection or delivery of mechanically propelled vehicles on or by means of another mechanically propelled vehicle, except in connection with activities which would be treated for the purposes of this section as part of his business as a motor trader apart from the provision in subsection (10) of this section as to the construction of the reference therein to a dealer in such vehicles.

(4) Any trade licence may be taken out for one calendar year and a general trade licence may be taken out for any period of three months beginning with the first day of January, of April, of July or of October.

(5) The rate of duty applicable to a trade licence taken out for a calendar year shall—

- (a) in the case of a general trade licence, be thirty pounds or, if the licence is to be used only for vehicles to which the First Schedule to this Act relates, six pounds;

- (b) in the case of a limited trade licence, be six pounds or, if the licence is to be used only for such vehicles, one pound five shillings ;

and the rate of duty applicable to a general trade licence taken out for a period of three months shall be eleven fortieths of the rate applicable to the corresponding trade licence taken out for a calendar year.

(6) Nothing in this section shall operate to prevent a person entitled to take out a trade licence from holding two or more such licences.

(7) If any person is aggrieved by the refusal of a county council to issue a trade licence, he may appeal to the Minister, and the Minister shall, on any such appeal, make such order in the matter as he thinks just, and the council shall comply with any order so made.

(8) Any order made by the Minister under the foregoing subsection—

- (a) shall be final and not subject to appeal to any court, and
- (b) shall be enforceable in England by order of mandamus on the application of the Minister, and in Scotland by order of the Court of Session on the application of the Lord Advocate :

Provided that paragraph (a) of this subsection—

- (i) shall not have effect as respects Scotland ; and
- (ii) as respects England and Wales shall be treated for the purposes of section eleven of the Tribunals and Inquiries Act, 1958 (which extends the supervisory powers of the High Court over orders and determinations which by virtue of any Act passed before the commencement of that Act are not to be called into question in any court) as contained in an Act passed before the commencement of that Act.

(9) If any person holding a trade licence or trade licences issued under this Act uses on a public road at any one time a greater number of vehicles than he is authorised to use by virtue of that licence or those licences, he shall be liable to the greater of the following penalties, namely—

- (a) an excise penalty of twenty pounds ; or
- (b) an excise penalty equal to three times the amount of the duty chargeable in respect of the vehicle or vehicles.

(10) In this section “motor trader” means a manufacturer or repairer of, or dealer in, mechanically propelled vehicles ; and a person shall be treated for the purposes of this section as a dealer in such vehicles if he carries on a business consisting

wholly or mainly of collecting and delivering mechanically propelled vehicles, and not including any other activities except activities as a manufacturer or repairer of, or dealer in, such vehicles.

Registration and registration marks, etc.

13.—(1) On the first issue of a licence under this Act for a mechanically propelled vehicle, it shall be the duty of the county council issuing the licence to register the vehicle in the prescribed manner without any further application in that behalf by the person taking out the licence and to assign to the vehicle a registration mark indicating the registered number of the vehicle and the council which has registered it. Registration and registration marks.

(2) The registration mark assigned to a mechanically propelled vehicle under this section shall be fixed in the prescribed manner on the vehicle, or on any other vehicle drawn by that vehicle, or on both.

14. On every mechanically propelled vehicle which is chargeable with duty as a hackney carriage there shall, subject to the prescribed exceptions, be exhibited, in conjunction with the mark required under the foregoing section to be fixed on the vehicle, a distinctive sign indicating— Distinctive signs for hackney carriages.

(a) that the vehicle is a hackney carriage ; and

(b) the number of persons for which the vehicle has seating capacity ;

and regulations under this Act shall provide for such signs to be exhibited as aforesaid.

15.—(1) If any mark to be fixed or sign to be exhibited on a vehicle in accordance with either of the last two foregoing sections is not so fixed or exhibited, the person driving the vehicle, or, where the vehicle is not being driven, the person keeping the vehicle, shall be guilty of an offence : Failure to fix, and obscuration of, marks and signs.

Provided that it shall be a defence for a person charged under this subsection with failing to fix a mark to prove that he had no reasonable opportunity of registering the vehicle under this Act and that the vehicle was being driven on a public road for the purpose of being so registered.

(2) If any mark fixed or sign exhibited on a vehicle as aforesaid is in any way obscured or rendered or allowed to become not easily distinguishable, the person driving the vehicle, or, where the vehicle is not being driven, the person keeping the vehicle, shall be guilty of an offence :

Provided that it shall be a defence for a person charged with such an offence to prove that he took all steps reasonably practicable to prevent the mark or sign being obscured or rendered not easily distinguishable.

(3) Any person guilty of an offence under this section shall be liable on summary conviction—

- (a) if it is his first conviction of such an offence, to a fine not exceeding twenty pounds;
- (b) in any other case, to a fine not exceeding fifty pounds.

Regulations as to registration, etc.

16.—(1) Regulations under this Act may—

- (a) make provision with respect to the registration of mechanically propelled vehicles;
- (b) require county councils to make the prescribed returns with respect to mechanically propelled vehicles registered with them, and provide for making any particulars contained in the register available for use by the prescribed persons;
- (c) require any person to whom any mechanically propelled vehicle is sold or disposed of to furnish the prescribed particulars in the prescribed manner;
- (d) provide for the issue of registration books in respect of the registration of any mechanically propelled vehicle, and for the surrender and production, and the inspection by the prescribed persons, of any books so issued;
- (e) provide for the issue of new registration books in the place of any such books which may be lost or destroyed, and for the fee (not exceeding five shillings) to be paid on the issue of a new registration book; and
- (f) prescribe the size, shape and character of the registration marks or the signs to be fixed on any vehicle and the manner in which those marks or signs are to be displayed and rendered easily distinguishable, whether by night or by day.

(2) Regulations under this Act may—

- (a) prescribe the form of, and the particulars to be included in, the register of trade licences; and
- (b) make provision for assigning general registration marks to persons holding trade licences and, without prejudice to the foregoing, prescribe the registration marks to be carried by vehicles the use of which is authorised by virtue of such licences.

(3) Regulations under this Act may—

- (a) extend any of the provisions as to registration, and provisions incidental to any such provisions, to any mechanically propelled vehicles in respect of which duty is not chargeable under this Act (including vehicles belonging to the Crown); and
- (b) provide for the identification of any such vehicles.

Miscellaneous and supplementary provisions

17.—(1) If any person forges or fraudulently alters or uses, or fraudulently lends or allows to be used by any other person— Forgery, false information and offences against regulations.

(a) any mark to be fixed or sign to be exhibited on a mechanically propelled vehicle in accordance with section thirteen or section fourteen of this Act; or

(b) any licence or registration book under this Act,

he shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding six months.

(2) Any person who—

(a) in connection with an application for a licence under this Act for a vehicle, makes a declaration which to his knowledge is false or in any material respect misleading; or

(b) being required by virtue of this Act to furnish particulars in connection with a change of the registration of any vehicle, furnishes any particulars which to his knowledge are false or in any material respect misleading,

shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding six months.

(3) Any person who contravenes or fails to comply with any regulations under this Act shall be liable on summary conviction to a fine not exceeding twenty pounds.

18.—(1) Where it is alleged that a mechanically propelled vehicle has been used or kept in contravention of section seven or subsection (9) of section twelve of this Act,— Duty to give information.

(a) the owner of the vehicle shall give such information as he may be required by or on behalf of a chief officer of police or a county council to give as to the identity of the person or persons concerned and, if he fails to do so, shall be guilty of an offence unless he shows to the satisfaction of the court that he did not know and could not with reasonable diligence have ascertained the identity of the person or persons concerned; and

(b) any other person shall, if required as aforesaid, give any information which it is in his power to give and which may lead to the identification of any of the persons concerned and, if he fails to do so, shall be guilty of an offence.

(2) The following persons shall be treated for the purposes of the foregoing subsection as persons concerned, that is to say—

- (a) in relation to an alleged offence of using a vehicle in contravention of section seven or subsection (9) of section twelve of this Act, both the driver and any person using the vehicle ;
- (b) in relation to an alleged offence of keeping the vehicle in contravention of the said section seven, the person keeping the vehicle.

(3) A person guilty of an offence under subsection (1) of this section shall be liable on summary conviction to a fine not exceeding twenty pounds.

Institution of proceedings.

19.—(1) Proceedings for an offence under this Act may be instituted by a county council, and, in the case of an offence under section seven, subsection (4) of section ten or subsection (9) of section twelve of this Act,—

- (a) no proceedings shall be instituted except by a county council or by a constable with the consent of a county council (which may be given on their behalf by a duly authorised officer of theirs and proved by the production of a document purporting to be the consent so given and to be signed by the officer giving it), and
- (b) proceedings may be instituted at any time within three years from the date on which the offence was committed.

(2) Section two hundred and eighty-one of the Customs and Excise Act, 1952 (which restricts the bringing of proceedings under that Act) and subsection (1) of section two hundred and eighty-three of that Act (which extends the time for bringing such proceedings) shall not apply to offences under this Act.

(3) The foregoing provisions of this section shall not apply to Scotland, but every county council and their officers shall have power within their county to institute proceedings otherwise than on indictment for any offence under section seven, subsection (4) of section ten or subsection (9) of section twelve of this Act, and any such proceedings may be instituted at any time within three years from the date on which the offence was committed ; but save as aforesaid nothing in this Act shall be construed as empowering a council to institute any proceedings.

Burden of proof in certain proceedings.

20. If in any proceedings under section seven, subsection (9) of section twelve or subsection (2) of section seventeen of this Act any question arises—

- (a) as to the number of mechanically propelled vehicles used, or

- (b) as to the character, weight, horse-power or cylinder capacity of any mechanically propelled vehicle, or
- (c) as to the number of persons for which a mechanically propelled vehicle has seating capacity, or
- (d) as to the purpose for which any mechanically propelled vehicle has been used,

the burden of proof in respect of the matter in question shall lie on the defendant.

21.—(1) All sums paid to the Secretary of State under Application section twenty-seven of the Justices of the Peace Act, 1949, of fines and penalties, in respect of fines imposed, or penalties or forfeitures recovered, under or in pursuance of this Act by or before a magistrates' court in England and Wales shall be deemed to be Exchequer moneys within the meaning of the said section twenty-seven.

(2) All fines imposed and forfeitures recovered under or in pursuance of this Act in England and Wales otherwise than by or before a magistrates' court, and all fines imposed, and penalties and forfeitures recovered, under or in pursuance of this Act in Scotland, shall be paid into the Exchequer in such manner and in accordance with such directions as may be contained in an Order in Council under section five of this Act.

22.—(1) There shall be paid out of moneys provided by Expenses. Parliament in every year—

- (a) to every county council by whom the duty under this Act is levied, an amount equal to the expenses properly incurred by that council, in accordance with directions issued by the Minister with the approval of the Treasury, in or in connection with the levying of the duty and the registration of vehicles under this Act;
- (b) any expenses incurred by any government department (other than the Postmaster-General) in connection with the collection of the said duty or otherwise in the administration of this Act.

(2) The directions issued under paragraph (a) of the foregoing subsection may provide for advances being made to county councils from time to time as may be necessary during the year on account of the expenses referred to in that paragraph.

23.—(1) Regulations under this Act may be made generally Regulations. for the purpose of carrying this Act into effect, and any power to make regulations conferred by any other provision of this Act shall not be taken to prejudice the generality of the foregoing provision.

(2) Regulations under this Act may contain provisions prescribing any matter which is to be prescribed under this Act.

(3) Any power to make regulations conferred by this Act shall be exercisable by the Minister by statutory instrument which, except in the case of a statutory instrument containing only regulations made under subsection (3) or subsection (4) of section six or subsection (4) of section twenty-four of this Act, shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) County councils shall comply with any regulations under this Act.

- Interpretation.** 24.—(1) In this Act, unless the context otherwise requires—
- “county” includes a county borough, and “county council” shall be construed accordingly;
 - “gas” means any fuel which is wholly gaseous at a temperature of sixty degrees Fahrenheit under a pressure of thirty inches of mercury;
 - “hackney carriage” means a mechanically propelled vehicle standing or plying for hire, and includes any mechanically propelled vehicle let for hire by a person whose trade it is to sell mechanically propelled vehicles or to let mechanically propelled vehicles for hire, so however that for the purposes of this definition a letting under a hire-purchase agreement (as defined in section twenty-one of the Hire-Purchase Act, 1938) shall not be treated as a letting for hire;
 - “the Minister” means the Minister of Transport;
 - “prescribed” means prescribed by regulations;
 - “public road” means a road which is repairable at the public expense;
 - “trade licence”, “general trade licence”, and “limited trade licence” have the meanings assigned to them by section twelve of this Act.

(2) A mechanically propelled vehicle shall not be treated as an electrically propelled vehicle for the purposes of this Act unless the electrical motive power is derived either from a source external to the vehicle or from any electrical storage battery which is not connected to any source of power when the vehicle is in motion.

(3) References in this Act to the unladen weight of any mechanically propelled vehicle shall be construed in accordance with the provisions of the Sixth Schedule to this Act.

(4) The unit of horse-power or cylinder capacity for the purposes of any rate of duty under this Act shall be calculated in accordance with regulations under this Act.

(5) In the application of this Act to Scotland, references to a county shall, except in this subsection, be deemed to include references to a burgh within the meaning of the Local Government (Scotland) Act, 1947, containing a population according to the census for the time being last taken of or exceeding fifty thousand, and every other burgh shall be deemed to form part of the county within which it is situated, and the expression "county council" shall be construed accordingly.

(6) References in this Act to any enactment shall be construed, unless the context otherwise requires, as references to that enactment as amended by or under any subsequent enactment.

25.—(1) The enactments specified in the Seventh Schedule to this Act shall have effect subject to the amendments respectively specified in relation thereto in that Schedule. Consequential amendments, repeals, savings and transitional provisions.

(2) The enactments specified in Part I of the Eighth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule; and the orders specified in Part II of that Schedule are hereby revoked.

(3) The saving and transitional provisions contained in the Ninth Schedule to this Act shall have effect.

(4) The provisions of the Seventh and Ninth Schedules to this Act shall not be taken as prejudicing the operation of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

26.—(1) This Act may be cited as the Vehicles (Excise) Act, 1962. Short title, extent and commencement.

(2) This Act shall not extend to Northern Ireland.

(3) This Act shall come into operation on the first day of April, nineteen hundred and sixty-two.

SCHEDULES

FIRST SCHEDULE

Section 1.

ANNUAL RATES OF DUTY ON CERTAIN VEHICLES NOT EXCEEDING 8 CWT IN WEIGHT UNLADEN

PART I

1. Subject to the next following paragraph—

- (a) the annual rate of duty applicable to a mechanically propelled vehicle of a description specified in the first column of Part II of this Schedule, being a vehicle which does not exceed eight hundredweight in weight unladen, shall be the rate specified in relation to vehicles of that description in the second column of the said Part II; but
- (b) if a bicycle of a description so specified is used for drawing a trailer or side-car, the annual rate of duty applicable

1st SCH.

thereto shall be increased by the amount specified in relation to vehicles of that description in the third column of the said Part II.

2. Where a bicycle the cylinder capacity of whose engine exceeds two hundred and fifty cubic centimetres—

(a) is one for which a licence was taken out before the beginning of the year nineteen hundred and thirty-three, and

(b) does not exceed two hundred and twenty-four pounds in weight unladen,

it shall be treated for the purposes of this Schedule as having an engine of cylinder capacity exceeding one hundred and fifty, but not exceeding two hundred and fifty, cubic centimetres.

3. In this Schedule—

“bicycle” includes a motor scooter and a bicycle with an attachment for propelling it by mechanical power;

“tricycle” includes a motor scooter and a tricycle with an attachment for propelling it by mechanical power.

PART II

Description of vehicle	Rate of Duty	
	Initial	Additional if used for drawing trailer or side-car
	£ s. d.	£ s. d.
1. Bicycles (other than bicycles which are electrically propelled) of which the cylinder capacity of the engine—		
(a) does not exceed 150 cubic centimetres ...	1 0 0	12 0
(b) exceeds 150 cubic centimetres but does not exceed 250 cubic centimetres ...	2 5 0	12 0
(c) exceeds 250 cubic centimetres ...	4 10 0	1 10 0
2. Bicycles which are electrically propelled ...	1 0 0	12 0
3. Tricycles neither constructed nor adapted for use nor used for the carriage of a driver or passenger ...	2 10 0	—
4. Other tricycles ...	6 0 0	—
5. Vehicles other than mowing machines, being vehicles with more than three wheels neither constructed nor adapted for use nor used for the carriage of a driver or passenger ...	3 15 0	—

Section 1.

SECOND SCHEDULE

ANNUAL RATES OF DUTY ON HACKNEY CARRIAGES

PART I

1. The annual rate of duty applicable to a hackney carriage of any description shall be the rate specified in relation to carriages of that description in the second column of Part II of this Schedule.

2. For the purposes of this Schedule, the seating capacity of a vehicle shall be determined in accordance with regulations under this Act.

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3. Duty shall not be chargeable by virtue of this Schedule in respect of a vehicle chargeable with duty by virtue of the First Schedule to this Act.

PART II

Description of vehicle	Rate of duty
	£ s. d.
1. Hackney carriages being tramcars	15 0
2. Other hackney carriages	12 0 0
	with an additional 10s. 0d. for each person above 20 (excluding the driver) for which the vehicle has seating capacity.

THIRD SCHEDULE

Section 1.

ANNUAL RATES OF DUTY ON TRACTORS, ETC.

PART I

1. The annual rate of duty applicable to a mechanically propelled vehicle of a description specified in the first column of Part II of this Schedule shall, according to the unladen weight of the vehicle as set out in the second and third columns of that Table, be the initial rate specified in relation to vehicles of that description and that weight in the fourth column of that Table together with any additional rate so specified in the fifth column of that Table.

2.—(1) In this Schedule “agricultural machine” means a locomotive ploughing engine, tractor, agricultural tractor or other agricultural engine which is not used on public roads for hauling any objects, except as follows, that is to say—

- (a) for hauling its own necessary gear, threshing appliances, farming implements, a living van for the accommodation of persons employed in connection with the vehicle, or supplies of water or fuel required for the purposes of the vehicle or for agricultural purposes ;
- (b) for hauling, from one part of a farm to another part of that farm, agricultural or woodland produce of, or articles required for, the farm ;
- (c) for hauling, within fifteen miles of a farm in the occupation of the person in whose name the vehicle is registered under this Act, agricultural or woodland produce of that farm, or agricultural or woodland produce of land occupied with that farm, or fuel required for any purpose on that farm or for domestic purposes by persons employed on that farm by the occupier of the farm ;

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- (d) for hauling articles required for a farm by the person in whose name the vehicle is registered as aforesaid, being either the owner or occupier of the farm or a contractor engaged to do agricultural work on the farm by the owner or occupier of the farm, or for hauling articles required by that person for land occupied by him with a farm ;
- (e) for hauling, within fifteen miles of a forestry estate in the occupation of the person in whose name the vehicle is registered as aforesaid, agricultural or woodland produce of that estate or fuel required for any purpose on that estate or for domestic purposes by persons employed on that estate by the occupier of the estate, or for hauling articles required for such a forestry estate by the occupier of the estate.

(2) In this paragraph—

- (a) any reference to a farm includes a market garden ;
- (b) any reference to woodland produce includes the wood and other produce of trees which are not woodland trees ;
- (c) any reference to articles required for a farm, forestry estate or other land includes articles which are or have been required for doing work on and for the purposes of the farm, forestry estate or other land, except that—
 - (i) the reference to articles required for a farm by a contractor engaged to do agricultural work on the farm shall include only articles required for the farm in connection with that work, and
 - (ii) the reference to articles required for land occupied with a farm shall include only articles required for the land in connection with the doing on the land of any agricultural or forestry work (including the getting and carrying away of any woodland produce) ;
- (d) any reference to the owner of a farm includes any person having any estate or interest in land comprised in the farm.

3. In this Schedule “digging machine” means a vehicle designed, constructed and used for the purpose of trench digging or any kind of excavating or shovelling work which—

- (a) is used on public roads only for that purpose or for the purpose of proceeding to and from the place where it is to be used for that purpose ; and
- (b) when so proceeding, neither carries nor hauls any load than such as is necessary for its propulsion or equipment.

4. In this Schedule “mobile crane” means a vehicle designed and constructed as a mobile crane which—

- (a) is used on public roads only either as a crane in connection with work being carried on on a site in the immediate vicinity or for the purpose of proceeding to and from a place where it is to be used as a crane ; and
- (b) when so proceeding neither carries nor hauls any load than such as is necessary for its propulsion or equipment.

3RD SCH.

5. In this Schedule "haulage vehicle" means a vehicle (other than one described in any of the foregoing paragraphs) which is constructed and used on public roads for haulage solely and not for the purpose of carrying or having superimposed upon it any load except such as is necessary for its propulsion or equipment.

6. In this Schedule "showman's vehicle" means a vehicle registered under this Act in the name of a person following the business of a travelling showman and used solely by him for the purposes of his business and for no other purpose.

PART II

1. Description	Weight unladen of vehicle		Rate of duty	
	2. Exceeding	3. Not exceeding	4. Initial	5. Additional for each ton or part of a ton in excess of the weight in column 2
			£ s. d.	£ s. d.
1. Agricultural machines	—	—	2 10 0	—
2. Digging machines	—	—	2 10 0	—
3. Mobile cranes	—	—	2 10 0	—
4. Mowing machines	—	—	2 10 0	—
5. Haulage vehicles, not being showmen's vehicles.	— 2 tons 4 tons 6 tons 7½ tons 8 tons	2 tons 4 tons 6 tons 7½ tons 8 tons —	30 0 0 48 0 0 66 0 0 84 0 0 102 0 0 102 0 0	— — — — — 18 0 0
6. Haulage vehicles, being show- men's vehicles.	— 7½ tons 8 tons 10 tons	7½ tons 8 tons 10 tons —	30 0 0 36 0 0 42 0 0 42 0 0	— — — 6 0 0

FOURTH SCHEDULE

Section 1.

ANNUAL RATES OF DUTY ON GOODS VEHICLES

PART I

1.—(1) Subject to the provisions of this Schedule, the annual rate of duty applicable to a goods vehicle of a description specified in the first column of Table A in Part II of this Schedule shall, according to the unladen weight of the vehicle as set out in the second and third columns of that Table, be the initial rate specified in relation to vehicles of that description and that weight in the fourth column of that Table together with any additional rate so specified in the fifth column of that Table.

C

4TH SCH.

(2) Subject to the provisions of this Schedule, if a goods vehicle of a description specified in the first column of Table B in Part II of this Schedule is used for drawing a trailer, the annual rate of duty applicable thereto in accordance with the foregoing sub-paragraph shall be increased by the amount specified in the fourth column of that Table in relation to vehicles of that description or, where the unladen weight of the vehicle is set out in the second and third columns of that Table, by the amount so specified in relation to vehicles of that description and weight.

2. Duty shall not be chargeable by virtue of this Schedule—

- (a) in respect of a vehicle chargeable with duty by virtue of the First Schedule to this Act ;
- (b) in respect of an agricultural machine as being a goods vehicle by reason of the fact that it is constructed or adapted for use and used for the conveyance of farming or forestry implements fitted thereto for operation while so fitted ;
- (c) in respect of a mobile crane ; or
- (d) in respect of a vehicle of which the unladen weight exceeds twelve hundredweight and which, though constructed or adapted for use for the conveyance of goods or burden, is not used for the conveyance thereof for hire or reward or for or in connection with a trade or business (including the performance by a local or public authority of its functions).

3.—(1) A mechanically propelled vehicle constructed or adapted for use and used for the conveyance of a machine or contrivance and no other load except articles used in connection with the machine or contrivance, not being a vehicle for which an annual rate of duty is specified in the Third Schedule to this Act, shall, notwithstanding that the machine or contrivance is built in as part thereof, be chargeable with duty at the rate which would be applicable if the machine or contrivance were burden and were not included in the unladen weight of the vehicle.

(2) A mobile concrete mixer which, but for its conveyance of the materials used by it in mixing concrete, would fall within the foregoing sub-paragraph, shall be chargeable with duty in accordance with that sub-paragraph and shall be so chargeable at the rate which would be applicable thereunder if so much of the weight of its built-in machine or contrivance as exceeds thirty hundredweight were burden and were not included in the unladen weight of the vehicle.

4.—(1) Where a goods vehicle used for drawing a trailer has the trailer attached to it by partial super-imposition, the vehicle and trailer shall, for the purpose of determining the annual rate of duty applicable to the vehicle, be treated as if they together formed a single vehicle, and the increase of duty provided for by sub-paragraph (2) of paragraph 1 of this Part of this Schedule shall not be chargeable.

(2) The increase of duty provided for by the said sub-paragraph (2) shall not be chargeable in the case of a vehicle which is constructed or adapted for use for the conveyance of goods or burden,

but is not used for the conveyance thereof for hire or reward or for or in connection with a trade or business (including the performance by a local or public authority of its functions), if the vehicle's unladen weight does not exceed twelve hundredweight.

4TH SCH.

5.—(1) This and the following paragraph apply to agricultural machines which do not draw trailers.

(2) Subject to the provisions of this and the following paragraph, a vehicle to which this paragraph applies shall not be chargeable with duty by virtue of this Schedule by reason of the fact that it is constructed or adapted for use and used for the conveyance of such goods or burden as are hereinafter mentioned if they are carried in or on not more than one appliance, the appliance is fitted either to the front or to the back of the vehicle and the following conditions are satisfied :—

(a) the appliance must be removable ;

(b) the area of the horizontal plane enclosed by vertical lines passing through the outside edges of the appliance must not, when the appliance is in the position in which it is carried when the vehicle is travelling and the appliance is loaded, exceed seven square feet if it is carried at the front or fifteen square feet if it is carried at the back.

(3) The goods or burden referred to in the foregoing sub-paragraph are any goods or burden the haulage of which is permissible under paragraphs (a) to (e) of sub-paragraph (1) of paragraph 2 of the Third Schedule to this Act.

(4) The foregoing provisions of this paragraph shall not apply to the use of a vehicle on a public road more than fifteen miles from a farm in the occupation of the person in whose name the vehicle is registered under this Act.

(5) The foregoing provisions of this paragraph shall not apply to three-wheeled vehicles, or to any vehicle such that the distance between the centre of the area of contact with the road surface of—

(a) a back wheel, in a case where only one appliance is being used for the carriage of goods or burden, and is fitted to the back of the vehicle,

(b) any wheel on one side of the vehicle, in any other case, and that of the nearest wheel on the other side is less than four feet.

(6) For the purposes of this paragraph a vehicle having two wheels at the front shall, if the distance between them (measured between the centres of their respective areas of contact with the road) is less than eighteen inches, be treated as a three-wheeled vehicle.

6.—(1) The following provisions of this paragraph shall have effect in relation to any vehicle fitted with an appliance of any description prescribed for the purposes of all or any of sub-paragraphs (2) to (4) of this paragraph by regulations under this paragraph.

(2) The limitation in sub-paragraph (2) of the foregoing paragraph to one appliance shall have effect as a limitation to two

4TH SCH. appliances of which at least one must be an appliance prescribed for the purposes of this sub-paragraph; but if two appliances are used they must be fitted at opposite ends of the vehicle.

(3) Regulations under this paragraph may provide for all or any of the following matters where an appliance prescribed for the purposes of this paragraph is being used, that is to say, that sub-paragraph (2) of the foregoing paragraph shall not apply unless the prescribed appliance is fitted to the prescribed end of the vehicle, or unless the use of the prescribed, or any, appliance is limited to prescribed goods or burden or to use in prescribed circumstances.

(4) Regulations under this paragraph may provide that paragraph (b) of sub-paragraph (2) of the foregoing paragraph shall not have effect in relation to appliances prescribed for the purposes of this sub-paragraph, but that in relation thereto sub-paragraph (4) of the foregoing paragraph shall have effect with the substitution of such shorter distance as may be prescribed.

(5) In sub-paragraphs (2) to (4) of this paragraph references to use are references to use for the carriage of goods or burden; and regulations under this paragraph may make different provisions in relation to different descriptions of prescribed appliances.

7.—(1) In this Schedule, unless the context otherwise requires—
“agricultural machine” has the same meaning as in the Third Schedule to this Act;

“farmer’s goods vehicle” means a goods vehicle registered under this Act in the name of a person engaged in agriculture and used on public roads solely by him for the purpose of the conveyance of the produce of, or of articles required for the purposes of, the agricultural land which he occupies, and for no other purpose;

“goods vehicle” means a mechanically propelled vehicle (including a tricycle as defined in the First Schedule to this Act and weighing more than eight hundredweight unladen) constructed or adapted for use and used for the conveyance of goods or burden of any description, whether in the course of trade or otherwise;

“local authority’s watering vehicle” means a goods vehicle used solely within the area of a local authority by that local authority, or by any person acting in pursuance of a contract with that local authority, for the purpose of cleansing or watering roads or cleansing gulleys;

“mobile crane” has the same meaning as in the Third Schedule to this Act;

“showman’s goods vehicle” means a showman’s vehicle which is a goods vehicle and is permanently fitted with a living van or some other special type of body or superstructure, forming part of the equipment of the show of the person in whose name the vehicle is registered under this Act;

“showman’s trailer” means a trailer drawn by a showman’s goods vehicle and used solely for the purposes of his business by the person in whose name the vehicle is registered as aforesaid;

"showman's vehicle" has the same meaning as in the Third Schedule to this Act ;

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"tower wagon" means a goods vehicle—

(a) into which there is built, as part of the vehicle, any expanding or extensible contrivance designed for facilitating the erection, inspection, repair or maintenance of overhead structures or equipment ; and

(b) which is neither constructed nor adapted for use nor used for the conveyance of any load, except such a contrivance and articles used in connection therewith.

(2) In this Schedule "trailer" does not include—

(a) an appliance constructed and used solely for the purpose of distributing on the road loose gritting material ;

(b) a snow plough ;

(c) a road construction vehicle within the meaning of section six of this Act ;

(d) a farming implement not constructed or adapted for the conveyance of goods or burden of any description, when drawn by a farmer's goods vehicle ;

(e) a trailer used solely for the carriage of a container for holding gas for the propulsion of the vehicle by which it is drawn, or plant and materials for producing such gas.

PART II

Tables showing annual rates of duty on goods vehicles

TABLE A

General Rates of Duty

1. Description of vehicle	Weight unladen of vehicle		Rate of Duty	
	2. Exceeding	3. Not exceeding	4. Initial	5. Additional for each $\frac{1}{4}$ ton or part of a $\frac{1}{4}$ ton in excess of the weight in column 2
			£ s. d.	£ s. d.
1. Electrically propelled goods vehicles, including tower wagons whether electrically propelled or not but not including farmers' goods vehicles, showmen's goods vehicles or local authorities' watering vehicles.	—	12 cwt.	12 0 0	—
	12 cwt.	16 cwt.	15 0 0	—
	16 cwt.	1 ton	18 0 0	—
	1 ton	2 tons	18 0 0	1 10 0
	2 tons	3 tons	24 0 0	3 0 0
	3 tons	6 tons	36 0 0	1 10 0
	6 tons	—	54 0 0	3 0 0

4TH SCH.

1. Description of vehicle	Weight unladen of vehicle		Rate of Duty	
	2. Exceeding	3. Not exceeding	4. Initial	5. Additional for each ¼ ton or part of a ¼ ton in excess of the weight in column 2
			£ s. d.	£ s. d.
2. Goods vehicles which are propelled by steam or are constructed or adapted to use gas as fuel, other than farmers' goods vehicles, showmen's goods vehicles or local authorities' watering vehicles	— 12 cwt. 16 cwt. 1 ton 3 tons 4 tons 6 tons	12 cwt 16 cwt 1 ton 3 tons 4 tons 6 tons —	12 0 0 15 0 0 18 0 0 18 0 0 42 0 0 60 0 0 108 0 0	— — — 3 0 0 4 10 0 6 0 0 4 10 0
3. Farmers' goods vehicles ...	— 12 cwt. 1½ tons 2 tons 2½ tons 3½ tons	12 cwt 1½ tons 2 tons 2½ tons 3½ tons —	12 0 0 12 0 0 14 5 0 15 15 0 17 5 0 20 5 0	— 15 0 10 0 15 0 1 0 0 10 0
4. Showmen's goods vehicles ...	— 12 cwt. 16 cwt. 1 ton 1½ tons	12 cwt 16 cwt 1 ton 1½ tons —	12 0 0 13 5 0 14 10 0 15 10 0 15 10 0	— — — — 1 5 0
5. Local authorities' watering vehicles which are electrically propelled.	— 1½ tons 2 tons 3 tons 5 tons	1½ tons 2 tons 3 tons 5 tons —	7 0 0 7 0 0 16 0 0 19 0 0 29 0 0	— 3 0 0 15 0 1 0 0 —
6. Local authorities' watering vehicles which are not electrically propelled.	— 12 cwt. 16 cwt. 1 ton 2 tons 4 tons 5 tons	12 cwt. 16 cwt. 1 ton 2 tons 4 tons 5 tons —	12 0 0 15 0 0 18 0 0 18 0 0 30 0 0 46 0 0 58 0 0	— — — 3 0 0 2 0 0 1 10 0 —
7. Goods vehicles not included in any of the foregoing provisions of this Part of this Schedule.	— 12 cwt. 16 cwt. 1 ton 3 tons 4 tons	12 cwt. 16 cwt. 1 ton 3 tons 4 tons —	12 0 0 15 0 0 18 0 0 18 0 0 42 0 0 60 0 0	— — — 3 0 0 4 10 0 6 0 0

TABLE B

4TH SCH.

Rates of Duty on Goods Vehicles used for Drawing Trailers

1. Description of vehicle	Weight unladen of vehicle		4. Rate of Duty
	2. Exceeding	3. Not exceeding	
1. Showmen's goods vehicles used for drawing showmen's trailers.	—	—	£ s. d. 12 0 0
2. Local authorities' watering vehicles ...	—	—	7 0 0
3. Other goods vehicles... 	—	2½ tons	12 0 0
	2½ tons	4 tons	18 0 0
	4 tons	—	24 0 0

FIFTH SCHEDULE

Section 1.

ANNUAL RATES OF DUTY ON VEHICLES NOT FALLING WITHIN THE
FIRST FOUR SCHEDULES TO THIS ACT

PART I

The annual rate of duty applicable to a mechanically propelled vehicle of a description specified in the first column of Part II of this Schedule, being a vehicle in respect of which an annual rate is not specified in the foregoing Schedules to this Act, shall be the rate specified in relation to vehicles of that description in the second column of the said Part II.

PART II

Description of Vehicle	Rate of Duty
1. Electrically propelled vehicles 	£ s. d. 9 0 0
2. Other vehicles—	
(a) vehicles not exceeding six horse-power, if registered under the Roads Act, 1920, for the first time before the first day of January, nineteen hundred and forty-seven 	10 15 0
(b) vehicles exceeding six horse-power but not exceeding seven horse-power if registered as aforesaid 	12 10 0
(c) vehicles not included in the foregoing sub-paragraphs	15 0 0

Section 24.

SIXTH SCHEDULE

PROVISIONS AS TO THE COMPUTATION OF THE UNLADEN WEIGHT
OF VEHICLES

1. Subject to the provisions of this Schedule, the unladen weight of any mechanically propelled vehicle shall, for the purposes of this Act, be taken to be the weight of the vehicle inclusive of the body and all parts (the heavier being taken where alternative bodies or parts are used) which are necessary to or ordinarily used with the vehicle when working on a road but exclusive of the weight of water, fuel or accumulators used for the purpose of the supply of power for the propulsion of the vehicle, and of loose tools and loose equipment.

2.—(1) In computing for the purposes of the Fourth Schedule to this Act the unladen weight of a goods vehicle, there shall be included the weight of any receptacle, being an additional body, placed on the vehicle for the purpose of the carriage of goods or burden of any description, if any goods or burden are loaded into, carried in and unloaded from the receptacle without the receptacle being removed from the vehicle:

Provided that the weight of a receptacle shall not be included in the unladen weight of a goods vehicle by virtue of this sub-paragraph—

- (a) unless the receptacle is placed on the vehicle by or on behalf of the person in whose name the vehicle is registered under this Act ; or
- (b) if the receptacle is constructed or adapted for the purpose of being lifted on or off the vehicle with goods or burden contained therein and is from time to time actually used for that purpose in the ordinary course of business ; or
- (c) if the receptacle is specially constructed or specially adapted for carrying livestock and is used solely for that purpose.

(2) If any question arises under paragraph (b) of the proviso to sub-paragraph (1) of this paragraph whether any receptacle is from time to time actually used for the purpose therein mentioned in the ordinary course of business, the receptacle shall be deemed not to be so used until the contrary is shown.

(3) For the purposes of paragraph (c) of the proviso to sub-paragraph (1) of this paragraph a receptacle shall not be deemed to be used otherwise than solely for carrying livestock by reason that, on a journey the main purpose of which is the carrying of livestock or on the way to the loading point or while returning from the discharging point on such a journey, the vehicle is used for carrying agricultural produce or agricultural requisites.

3. For the purposes of the Third and Fourth Schedules to this Act the unladen weight of a mechanically propelled vehicle shall not be taken to include the weight of a contrivance attached thereto, being a contrivance designed or adapted for the purpose of enabling the vehicle to tow or be towed :

Provided that in computing the unladen weight of a vehicle there shall not, by virtue of this paragraph, be excluded the weight of a contrivance attached to the rear of a vehicle chargeable with duty by virtue of the Third Schedule to this Act or of a vehicle which is chargeable with duty by virtue of the Fourth Schedule to this Act and is used for drawing a trailer, or, in any event an amount exceeding—

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- (a) where a contrivance, the weight of which falls to be excluded, is attached to one end only of the vehicle, one hundredweight;
- (b) where such a contrivance is attached to each end of the vehicle, two hundredweight.

4. In computing for the purposes of the Fourth Schedule to this Act the unladen weight of a goods vehicle which carries a container for holding gas for the propulsion of the vehicle, or plant for producing such gas, the unladen weight of the vehicle shall be reduced—

- (a) where the unladen weight exceeds twelve hundredweight but does not exceed three tons, by half a ton;
- (b) where the unladen weight exceeds three tons but does not exceed six tons, by three quarters of a ton;
- (c) where the unladen weight exceeds six tons, by one ton.

SEVENTH SCHEDULE

Section 25.

CONSEQUENTIAL AMENDMENTS TO OTHER ACTS

The Customs and Excise Act, 1952

(15 & 16 Geo. 6 & 1 Eliz. 2 c. 44)

In subsection (4) of section two hundred, for paragraph (a) there shall be substituted the following paragraph:—

- “(a) any agricultural machine, digging machine, mobile crane or mowing machine mentioned in the Third Schedule to the Vehicles (Excise) Act, 1962, or in paragraph (a), (b), (c) or (d) of subsection (2) of section four of the Vehicles (Excise) Act (Northern Ireland), 1954”.

The Road Transport Lighting Act, 1957

(5 & 6 Eliz. 2 c. 51)

For subsection (3) of section eighteen there shall be substituted the following subsection:—

- “(3) Section twenty-one of the Vehicles (Excise) Act, 1962, shall apply in relation to fines imposed in respect of offences under this Act as it applies in relation to fines imposed under or in pursuance of that Act.”

The Road Traffic Act, 1960

(8 & 9 Eliz. 2 c. 16)

(2) In subsection (2) of section two hundred and forty-seven, for the words from “in the same manner” to “under that Act” there

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shall be substituted the words "in the manner and in accordance with the directions applicable by virtue of subsection (2) of section twenty-one of the Vehicles (Excise) Act, 1962, to the fines therein mentioned".

Section 25.

EIGHTH SCHEDULE

REPEALS AND REVOCATIONS

PART I

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
12, 13 & 14 Geo. 6. c. 89. 14 Geo. 6. c. 15	The Vehicles (Excise) Act, 1949. The Finance Act, 1950 ...	The whole Act. Section thirteen. The Third Schedule.
15 & 16 Geo. 6. & 1 Eliz. 2. c. 33.	The Finance Act, 1952 ...	Section seven.
15 & 16 Geo. 6. & 1 Eliz. 2. c. 39.	The Motor Vehicles (International Circulation) Act, 1952.	In section three, subsection (1) and, in subsection (3), the words "the said subsection (3) or".
15 & 16 Geo. 6. & 1 Eliz. 2. c. 44.	The Customs and Excise Act, 1952.	In the Tenth Schedule, in Part II, paragraph 32.
1 & 2 Eliz. 2. c. 34.	The Finance Act, 1953 ...	Sections five and six.
4 & 5 Eliz. 2. c. 54.	The Finance Act, 1956 ...	Section five.
5 & 6 Eliz. 2. c. 49.	The Finance Act, 1957 ...	Section seven.
6 & 7 Eliz. 2. c. 55.	The Local Government Act, 1958.	In section four, in subsection (2), paragraph (f).
6 & 7 Eliz. 2. c. 56.	The Finance Act, 1958 ...	Sections seven to nine.
6 & 7 Eliz. 2. c. 64.	The Local Government and Miscellaneous Financial Provisions (Scotland) Act, 1958.	In section four, in subsection (2), paragraph (d).
7 & 8 Eliz. 2. c. 58.	The Finance Act, 1959 ...	In section seven, in subsection (4), the words from "and in" to the end of the subsection. Sections ten to fourteen. The Third Schedule.
8 & 9 Eliz. 2. c. 44.	The Finance Act, 1960 ...	Sections eleven to fourteen.
9 & 10 Eliz. 2. c. 15.	The Post Office Act, 1961...	In the Schedule, the amendment of section twenty-four of the Vehicles (Excise) Act, 1949.
9 & 10 Eliz. 2. c. 36.	The Finance Act, 1961 ...	Sections six to eight. The Second Schedule.

PART II

8TH SCH.

ORDERS REVOKED

The Road Vehicles (Period Licensing) Order, 1960 (S.I. 1960/1023).

The Road Vehicles (Period Licensing) (Variation) Order, 1960 (S.I. 1960/1640).

The Road Vehicles (Period Licensing) (Variation) Order, 1961 (S.I. 1961/774).

NINTH SCHEDULE

Section 25.

SAVING AND TRANSITIONAL PROVISIONS

1. In so far as any Order in Council, regulation, order, licence or other instrument made or issued, or having effect as if made or issued, under any enactment repealed by this Act or any other thing done or deemed to have been done under any such enactment, could have been made, issued or done under a corresponding provision of this Act it shall not be invalidated by the repeals effected by section twenty-five of this Act, but shall have effect as if made, issued or done under that corresponding provision :

Provided that this paragraph shall not be construed as saving any order specified in Part II of the Eighth Schedule to this Act.

2. Without prejudice to the foregoing paragraph, any provision of this Act relating to anything done or required or authorised to be done under, or by reference to, that provision or any other provision of this Act shall have effect as if any reference to that provision or to that other provision, as the case may be, included a reference to the corresponding provision of the enactments repealed by this Act.

3. Nothing in this Act shall affect the enactments repealed thereby in their operation in relation to offences committed before the commencement of this Act.

4. In relation to a vehicle for which a licence was issued before and is in force at the commencement of this Act, or the last licence issued was issued between the commencement of the Vehicles (Excise) Act, 1949, and the commencement of this Act, subsection (2) of section four of this Act shall have effect as if for the reference in paragraph (a) to the same Schedule to this Act there were substituted a reference to the Schedule to this Act corresponding to the enactment under which duty was chargeable for the licence.

5. In relation to a vehicle for which a licence was taken out before and is in force at the commencement of this Act, section ten of this Act shall have effect as if--

(a) any reference to any rate of duty or amount payable under this Act included a reference to a rate of duty or an amount payable under the Vehicles (Excise) Act, 1949 ;

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(b) for any reference to duty paid in respect of a vehicle at a rate applicable under the Fourth Schedule to this Act, there were substituted a reference to duty paid under section five of the said Act of 1949.

6. For the purposes of section fifteen of this Act a person shall be treated as having been previously convicted of an offence under that section if he has been convicted of an offence under the corresponding enactment in the Vehicles (Excise) Act, 1949.

7. Any enactment passed before the commencement of this Act referring, whether specifically or by means of a general description, to an enactment repealed by this Act shall, unless the contrary intention appears, be construed as referring to the corresponding provision of this Act, and any document made or issued (whether before or after the commencement of this Act) referring, whether specifically or by means of a general description, to an enactment repealed by this Act shall, unless the contrary intention appears, be similarly construed.

8. Nothing in this Act shall require any charge or fee to be paid which would not have been payable if this Act had not been passed.

9. Unless the context otherwise requires, references in this Schedule to enactments repealed by this Act include references to orders revoked by this Act and references to repeals shall be construed accordingly.

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Roads Act, 1920	10 & 11 Geo. 5. c. 72.
Hire Purchase Act, 1938	1 & 2 Geo. 6. c. 53.
Local Government (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 43.
Civil Defence Act, 1948	12, 13 & 14 Geo. 6. c. 5.
Vehicles (Excise) Act, 1949	12, 13 & 14 Geo. 6. c. 89.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Customs and Excise Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 44.
Road Transport Lighting Act, 1957	5 & 6 Eliz. 2. c. 51.
Tribunals and Inquiries Act, 1958	6 & 7 Eliz. 2. c. 66.
Road Traffic Act, 1960	8 & 9 Eliz. 2. c. 16.

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